IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF GEORGIA
ATLANTA DIVISION

WE GOT U LLC, Plaintiff, v. GARRY LEONARD, DIANA LEONARD, LEONARD CONSULTING, LLC, and FSELL MARKETING, LLC, Defendants.	)	Civil Action No.: 26-cv-03474-VMC JURY TRIAL DEMANDED

JOINT PRELIMINARY REPORT AND DISCOVERY PLAN

1. Description of Case:

(a) Describe briefly the nature of this action.

This is a trade-secret and breach-of-duty action. It arises from the alleged misappropriation of Plaintiff/Counterclaim Defendant We Got U LLC's ("WGU") confidential business information and the diversion of its clients to a competing operation by individual defendants formerly engaged by WGU, and defendant entities associated with them.

Defendants/Counterclaim Plaintiffs deny the misappropriation and diversion allegations, assert that WGU first breached by failing to pay their

earned compensation, and have asserted a counterclaim for the alleged unpaid amounts and an accounting.

(b) Summarize, in the space provided below, the facts of this case. The summary should not be argumentative nor recite evidence.

Plaintiff/Counterclaim Defendant's Summary:

WGU is a remote-first digital marketing agency serving automotive, powersports, and marine dealerships. Defendant/Counterclaim Plaintiff Garry Leonard served as WGU's Senior Marketing Manager under a May 20, 2025 Memorandum of Understanding, and Defendant/Counterclaim Plaintiff Diana Leonard, his spouse, served as WGU's Director of Client Services. Defendants Leonard Consulting, LLC and FSELL Marketing, LLC are Georgia limited liability companies that the Leonards controlled and used as payment conduits.

WGU alleges that, while still engaged by and owing duties to WGU, Garry Leonard organized FSELL as a competing vehicle and that he, Diana Leonard, and others acting under Garry's supervision downloaded and synchronized WGU's non-public client and prospect materials, including CRM data, advertising budgets, creative assets, and client login credentials, in the weeks preceding Garry's resignation. WGU further alleges that Garry coordinated with a competing agency, concealed his competing activities during a March 30, 2026 meeting with WGU's principal, and facilitated the departure

of WGU clients to that competitor, including by purporting to waive a client's contractual notice period without authority.

Defendants/Counterclaimants' Summary:

WGU has sued Defendants on the theory that Defendants misappropriated trade secrets and confidential information, diverted clients, and acted unlawfully in competing with WGU. Defendants deny Plaintiff's allegations. The information at issue was not protectable trade-secret or confidential information of WGU, was not wrongfully used by Counterclaim Plaintiffs, and did not cause the customer movement alleged by WGU. Defendants also assert that WGU is aware of this yet has chosen to file this lawsuit anyway.

On or about May 20, 2025, WGU and Garry Leonard entered into a Memorandum of Understanding ("MOU"). The MOU states that it was intended solely to define a profit-sharing arrangement between WGU and Garry Leonard for work performed. The MOU does not support Plaintiff's claims.

Garry Leonard had pre-existing personal and business relationships with certain clients and contacts independent of WGU, and any decision by any customer to reduce or discontinue business with WGU was made by that customer.

WGU also failed and refused to pay compensation earned by Garry Leonard under the MOU and the parties' course of dealing. Diana Leonard also rendered valuable services for WGU for which she was not paid, and WGU accepted the benefit of those services.

(c) The legal issues to be tried are as follows:

WGU asserts claims for misappropriation of trade secrets under the federal Defend Trade Secrets Act (Count I) and the Georgia Trade Secrets Act (Count II), breach of contract (Count III), breach of fiduciary duty and the duty of loyalty (Counts IV and V), civil conspiracy (Count VI), and unjust enrichment (Count VII), along with claims for punitive damages (Count VIII) and attorneys' fees (Count IX). WGU seeks compensatory, exemplary, and punitive damages, disgorgement of Defendants' unjust enrichment, attorneys' fees and costs, interest, and temporary, preliminary, and permanent injunctive relief.

Defendants/Counterclaim Plaintiffs Garry Leonard and Diana Leonard assert counterclaims against WGU for breach of contract by Garry Leonard for unpaid compensation under the MOU (Counterclaim Count I), breach of contract by Diana Leonard for unpaid compensation (Counterclaim Count II), quantum meruit/unjust enrichment in the alternative (Counterclaim Count III), an equitable accounting of WGU's books and records (Counterclaim

Count IV), and attorneys' fees, costs, and expenses of litigation under O.C.G.A. § 13-6-11 (Counterclaim Count V). The Leonards seek judgment on the counterclaims, damages in amounts to be proved at trial, an order requiring an accounting of the relevant books, records, receipts, invoices, payments, and account-level financial information, and attorneys' fees, costs, and expenses, pre-judgment and post-judgment interest.

(d) The cases listed below (include both style and action number) are:

(1) Pending Related Cases:

N/A.

(2) Previously Adjudicated Related Cases:

N/A.

2. This case is complex because it possesses one or more of the features listed below (please check):

_____(1) Unusually large number of parties
_____(2) Unusually large number of claims or defenses
_____(3) Factual issues are exceptionally complex
_____(4) Greater than normal volume of evidence
__X__(5) Extended discovery period is needed
_____(6) Problems locating or preserving evidence
_____(7) Pending parallel investigations or action by government
_____(8) Multiple use of experts
_____(9) Need for discovery outside United States boundaries
_____(10) Existence of highly technical issues and proof
_____(11) Unusually complex discovery of electronically stored information

3. Counsel:

The following individually-named attorneys are hereby designated as lead counsel for the parties:

Plaintiff: **Joshua Spoont, Nathaniel M. Edenfield, and Nathan Chapman.**

Defendant: **Drake Blackmon.**

4. Jurisdiction:

Is there any question regarding this Court's jurisdiction?
____ Yes **__X__ No**

If "yes," please attach a statement, not to exceed one page, explaining the jurisdictional objection. When there are multiple claims, identify and discuss separately the claim(s) on which the objection is based. Each objection should be supported by authority.

5. Parties to This Action:

(a) The following persons are necessary parties who have not been joined:

None known at this time.

(b) The following persons are improperly joined as parties:

N/A

(c) The names of the following parties are either inaccurately stated or necessary portions of their names are omitted:

N/A

(d) The parties shall have a continuing duty to inform the Court of any contentions regarding unnamed parties necessary to this action or any contentions regarding misjoinder of parties or errors in the statement of a party's name.

6. Amendments to the Pleadings:

Amended and supplemental pleadings must be filed in accordance with the time limitations and other provisions of Fed. R. Civ. P. 15. Further instructions regarding amendments are contained in LR 15.

(a) List separately any amendments to the pleadings that the parties anticipate will be necessary:

None known at this time.

(b) Amendments to the pleadings submitted LATER THAN THIRTY DAYS after the Joint Preliminary Report and Discovery Plan is filed, or should have been filed, will not be accepted for filing, unless otherwise permitted by law.

7. Filing Times for Motions:

All motions should be filed as soon as possible. The local rules set specific filing limits for some motions. These times are restated below.

All other motions must be filed WITHIN THIRTY DAYS after the beginning of discovery, unless the filing party has obtained prior permission of the court to file later. Local Rule 7.1A(2).

(a) Motions to Compel: before the close of discovery or within the extension period allowed in some instances. Local Rule 37.1.

(b) Summary Judgment Motions: within thirty days after the close of discovery, unless otherwise permitted by court order. Local Rule 56.1.

(c) Other Limited Motions: Refer to Local Rules 7.2A; 7.2B, and 7.2E, respectively, regarding filing limitations for motions pending on removal, emergency motions, and motions for reconsideration.

(d) Motions Objecting to Expert Testimony: Daubert motions with regard to expert testimony no later than the date that the proposed pretrial order is submitted. Refer to Local Rule 7.2F.

8. Initial Disclosures:

The parties are required to serve initial disclosures in accordance with Fed. R. Civ. P. 26. If any party objects that initial disclosures are not appropriate, state the party and basis for the party's objection. NOTE: Your initial disclosures should include electronically stored information. Refer to Fed. R. Civ. P. 26(a)(1)(B).

9. Request for Scheduling Conference:

Does any party request a scheduling conference with the Court? If so, please state the issues which could be addressed and the position of each party.

No.

10. Discovery Period:

The discovery period commences thirty days after the appearance of the first defendant by answer to the complaint. As stated in LR 26.2A, responses to initiated discovery must be completed before expiration of the assigned discovery period.

Cases in this Court are assigned to one of the following three discovery tracks: (a) zero month discovery period, (b) four months discovery period, and (c) eight months discovery period. A chart showing the assignment of cases to a discovery track by filing category is contained in Appendix F. The track to which a particular case is assigned is also stamped on the complaint and service copies of the complaint at the time of filing.

Please state below the subjects on which discovery may be needed:

- **WGU's trade secrets and confidential information — their identification, ownership, and independent economic value, and the reasonable measures WGU took to protect their secrecy.**
- **Defendants' handling of WGU information — their acquisition, downloading, syncing, retention, use, and disclosure of WGU materials, including the timing and volume of downloads and forensic examination of Defendants' devices, accounts, cloud storage, and metadata.**
- **Whether any information identified by WGU is actually a trade secret or confidential information and if Defendants in fact took any such information.**
- **FSELL and Leonard Consulting — the formation, ownership, control, purpose, and operations of each entity.**
- **Client and prospect diversion — Defendants' solicitation, diversion, and servicing of WGU clients and prospects, and the reasons for any client movement.**
- **Whether any customer movement, business opportunities, or changes in business relationships resulted from customer choice, lawful competition, dissatisfaction with WGU, and other independent causes rather than any actionable conduct by Defendants.**
- **The Parties' agreements — the MOU and Diana Leonard's Agreement, including negotiation and performance under these agreements.**
- **The formation, terms, interpretation, performance, enforceability, and alleged scope of the MOU and the document identified by WGU as Diana Leonard's agreement.**
- **WGU's compensation, payroll, commission, profit-share calculations, account-level revenue, invoices, receipts, and payments relevant to Counterclaimants' claims.**
- **WGU's books, records, and account-level financial information relevant to the compensation and accounting counterclaims.**
- **WGU's communications with alleged lost customers, prospective customers, third parties, and other persons relating to alleged client movement, causation, and damages.**

- **Damages — WGU's losses; Defendants' revenues, profits, and unjust enrichment from diverted clients and misused information.**
- **Whether WGU has suffered any compensable damages, and in turn, whether Counterclaimants are entitled to damages.**

If the parties anticipate that additional time beyond that allowed by the assigned discovery track will be needed to complete discovery or that discovery should be conducted in phases or be limited to or focused upon particular issues, please state those reasons in detail below:

Due to the nature of the claims and counterclaims in this case, which potentially involve ESI and computer forensics, the Parties believe that 6 months will be needed to conduct discovery.

11. Discovery Limitation and Discovery of Electronically Stored Information:

(a) What changes should be made in the limitations on discovery imposed under the Federal Rules of Civil Procedure or Local Rules of this Court, and what other limitations should be imposed?

The parties agree that pursuant to Rule 5(b)(2)E of the Fed. R. Civ. P., any pleadings or other papers may be served by sending such documents by email to the primary and/or secondary email addresses listed below on the Certificate of Service on this document (or any updated email addresses provided to all counsel of record).

The Parties request 6 months for discovery to be conducted for the reasons stated above.

(b) Is any party seeking discovery of electronically stored information?

___X_____ Yes _____ No

If "yes,"

(1) The parties have discussed the sources and scope of the production of electronically stored information and have agreed to limit the scope of production (e.g., accessibility, search terms, date limitations, or key witnesses) as follows:

No limitations at this time. The Parties have agreed to revisit the issue of the scope of production of ESI and appropriate limitations once discovery commences.

(2) The parties have discussed the format for the production of electronically stored information (*e.g.*, Tagged Image File Format (TIFF or .TIF files), Portable Document Format (PDF), or native), method of production (e.g., paper or disk), and the inclusion or exclusion and use of metadata, and have agreed as follows:

No agreements have been reached at this time. The Parties have agreed to revisit the issue of appropriate formats for, and methods of, production of ESI once discovery commences.

In the absence of agreement on issues regarding discovery of electronically stored information, the parties shall request a scheduling conference in paragraph 9 hereof.

12. Other Orders:

What other orders do the parties think that the Court should enter under Rule 26(c) or under Rule 16(b) and (c)?

The Parties anticipate submitting a proposed agreed confidentiality order. The Parties will discuss the scope and language of the order and then submit the same for the Court's consideration.

13. Privileged or Protected Material

Do the parties anticipate any issues about claims for privilege or of protection with respect to trial-preparation materials?

___ Yes **X No**

If "yes,"

The parties have discussed their views and proposals on any such issues, including the timing and method for complying with Rule 26(b)(5)(A) and whether, if they agree on a procedure to assert the claims after production, to ask the Court to include their agreement in an order under Federal Rule of Evidence 502. The parties have agreed as follows:

14. Settlement Potential:

(a) Lead counsel for the parties certify by their signatures below that they conducted a Rule 26(f) conference that was held on **July 27, 2026**, and that they participated in settlement discussions. Other persons who participated in the settlement discussions are listed according to party.

For plaintiff: Lead counsel (signature): ***/s/ Nathaniel M. Edenfield***

Other participants**: Nathan Chapman.**

For defendant: Lead counsel (signature): ***/s/ W. Drake Blackmon***

Other participants: **Mark Edwards.**

(b) All parties were promptly informed of all offers of settlement and following discussion by all counsel, it appears that there is now:

(_____) A possibility of settlement before discovery.
(___X___) A possibility of settlement after discovery.
(_____) A possibility of settlement, but a conference with the judge is needed.
(_____) No possibility of settlement.

(c) Counsel **(___X__) do** or (_____) do not intend to hold additional settlement conferences among themselves prior to the close of discovery.

The Parties are in the process of determining the date for the next settlement conference.

(d) The following specific problems have created a hindrance to settlement of this case.

Discovery has not yet commenced. Once the Parties exchange written discovery, they believe they will be in a better position to evaluate the case for settlement.

15. Trial by Magistrate Judge:

Note: Trial before a Magistrate Judge will be by jury trial if a party is otherwise entitled to a jury trial.

(a) The parties (_____) do consent to having this case tried before a magistrate judge of this Court. A completed Consent to Jurisdiction by a United States Magistrate Judge form has been submitted to the clerk of court this _____ day _____, of 20___.

(b) **The parties (___X___) do not consent to having this case tried before a magistrate judge of this Court.**

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SCHEDULING ORDER

Upon review of the information contained in the Joint Preliminary Report and Discovery Plan form completed and filed by the parties, the Court orders that the time limits for adding parties, amending the pleadings, filing motions, completing discovery, and discussing settlement are as set out in the Federal Rules of Civil Procedure and the Local Rules of this Court, except as herein modified:

The discovery period shall be six months.

IT IS SO ORDERED, this _____ day of _____, 20____.

_____
UNITED STATES DISTRICT JUDGE